

24STCV10974 24STCV10974

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV10974 Hearing Date: July 17, 2026 Dept: 512

HEARING DATE: Fri., July 17, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Morales,

et al. v. Becerra COMP. FILED: 05-01-24

CASE NUMBER: 24STCV10974

NOTICE: OK

PROCEEDINGS: MOTION

TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION

MOVING PARTY: Plaintiffs

Ana Bertha Morales and Patricia Trujillo Camarena

RESP. PARTY: Defendant

Nancy Carina Becerra

MOTIONS TO COMPEL FURTHER RESPONSES TO

REQUESTS FOR ADMISSION

(CCP § 2033.290)

TENTATIVE RULING:

Plaintiffs Ana Bertha Morales and

Patricia Trujillo Camarena's Motions to Compel Further Responses to Requests

for Admissions and requests for sanctions are DENIED.

Moving parties are ordered
to give notice of ruling.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a) OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on July 2, 2026 []

Late [] None

REPLY: Filed

on July 10, 2026 []

Late [] None

ANALYSIS:

I.

Background

On May 1, 2024, Plaintiffs Ana Bertha Morales ("Morales") and Patricia Trujillo Camarena ("Camarena") ("Plaintiffs") filed the instant action against Defendant Nancy Carina Becerra ("Defendant") and Does 1-50, alleging causes of action for Motor Vehicle and General Negligence. (Compl., pp. 1, 3.)

On October 7, 2026, Defendant filed an Answer.

On May 5, 2026, Morales filed the instant Motion to Compel Defendant to Provide Further Responses to Plaintiff's First Set of Requests for Admission ("RFAs") and request for sanctions.

On May 13, 2026, Camarena filed the

instant Motion to Compel Defendant to Provide Further Responses to Plaintiff's RFAs and request for sanctions.

On May 20, 2026, the Court, in pertinent part, consolidated the Motions' hearings to the same date, and issued an order assigning the case to Resolve Law LA Virtual MSC Program. (5/20/26 Order.)

On June 9, 2026, Plaintiffs filed a supplemental brief regarding the Motions.

On June 11, 2026, the Court called an Informal Discovery Conference ("IDC") for hearing; however, "[t]here being no appearance this date by the plaintiff the matter [was] placed off calendar." (6/11/26 Order.)

On July 2, 2026, Defendant filed Oppositions to the Motions.

On July 10, 2026, Plaintiffs filed Replies to the Motions.

II.

Legal

Standard

Notice of a motion to compel further discovery must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2033.290, subd. (c).)

The motion must also be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2033.290, subd. (b).)

In California, discovery statutes "must be construed liberally in favor of disclosure unless the request is clearly improper." (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.) "Under the discovery statutes, information is discoverable if it is unprivileged and is either relevant to the subject matter of the action or reasonably calculated to reveal admissible evidence." (John B. v. Superior

Court (2006) 38 Cal.4th 1177, 1186.) “Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action.” (Ibid.) “When discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden.” (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.)

III.

Discussion

A. Requests for Admission

Plaintiffs move for further responses to Defendant’s supplemental responses for RFAs Nos. 2, 5, 9, 19, and 20. (Motions, Sep. Statements.)

In the Oppositions, Defendant argues the Motions should be denied on the grounds that Plaintiffs failed to appear at the IDC, and Defendant’s responses to both sets of RFAs are sufficient and comply with the Code of Civil Procedure.

In the Replies, Plaintiffs state Plaintiffs’ counsel did not intentionally fail to appear at the IDC and, moreover, the lack of appearance at an IDC should not be grounds to deny the Motions; the Motions should be granted as Defendant’s responses are inadequate; and the Motions should be granted as the Oppositions demonstrate Defendant has sufficient information to admit or deny the RFAs pertaining to negligence.

Plaintiff Morales’ Motion

As an initial matter, the Court finds that the Motion was not brought less than 45 days from service of the responses. (Code Civ. Proc., § 2033.290, subd. (c).) Indeed, the Motion presents evidence that the last supplemental responses were served on March 19, 2026; however, the Motion was not filed until May 5, 2026, which is 46 days after service of the responses. (Motion, Exh. E.)

Further, no sufficient meet and confer declaration accompanies the Motion in violation of Code of Civil Procedure section 2033.290, subdivision (b). While the declaration accompanying the

Motion states a couple meet and confer letters were sent regarding the issues raised in the Motion, letters alone are insufficient to satisfy the meet and confer requirement. (Motion, Lopez Decl.) To the extent the declaration accompanying the Reply broadly references meet and confer attempts between the parties prior to filing the Motions, the Court does not find this declaration satisfies the statutory meet and confer requirement either.

Finally, the Court finds the responses to all subject RFAs are sufficient under the Code of Civil Procedure. (See Motion, Sep. Statement.) Each supplemental response to the RFAs either: admitted the material; denied the material; or stated the responding party lacked information or knowledge to admit or deny, and responding party made a reasonable inquiry into the matter to no avail. (See Code Civ. Proc., § 2033.220, subds. (a)-(c) [“(a) Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) Each answer shall: (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. (2) Deny so much of the matter involved in the request as is untrue. (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge. (c) If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter”].)

To the extent any supplemental response contained objections and the response of admit, deny, or lack of information to admit or deny and a reasonable inquiry was made, the Court finds the objections were well-founded given the phrasing of the request. (See Code Civ. Proc., § 2033.230.) For instance, RFA No. 2 seeks for Defendant to “[a]dmit that on December 18, 2022, YOU were negligent in the operation of the vehicle YOU drove with regard to the INCIDENT,” and RFA No. 5 seeks for Defendant to “[a]dmit that YOUR negligence with regard to the INCIDENT was a substantial factor in bringing about harm to Plaintiffs.” (Motion, Sep. Statement.) Negligence is a legal term of art with multiple components, and thus Defendant’s objections paired with admissions as to portions of the matter involved were permissible responses given the phrasing of the questions.

Furthermore, the supplemental responses provided by the responding party include the language requested by the moving party that: "This responding party lacks sufficient information or knowledge to either admit or deny. A reasonable inquiry concerning this particular request has been made and the information known is insufficient to enable this party to admit to the matter."

To the extent that the moving party wishes Request for Admissions to incorporate expert opinions, the parties are reminded that the parties may conduct expert discovery at the appropriate juncture of the case.

Thus,
Morales' Motion is DENIED.

Plaintiff Camarena's Motion

As an initial matter, no sufficient meet and confer declaration accompanies the Motion in violation of Code of Civil Procedure section 2033.290, subdivision (b). While the declaration accompanying the Motion states a couple meet and confer letters were sent regarding the issues raised in the Motion, letters alone are insufficient to satisfy the meet and confer requirement. (Motion, Lopez Decl.) To the extent the declaration accompanying the Reply broadly references meet and confer attempts between the parties prior to filing the Motions, the Court does not find this declaration satisfies the statutory meet and confer requirement either.

Finally, the Court finds the responses to all subject RFAs are sufficient under the Code of Civil Procedure. (See Motion, Sep. Statement.) Each supplemental response to the RFAs either: admitted the material; denied the material; or stated the responding party lacked information or knowledge to admit or deny, and responding party made a reasonable inquiry into the matter to no avail. (See Code Civ. Proc., § 2033.220, subds. (a)-(c) ["(a) Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) Each answer shall: (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly

qualified by the responding party. (2) Deny so much of the matter involved in the request as is untrue. (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge. (c) If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter”].)

To the extent any supplemental response contained objections and the response of admit, deny, or lack of information to admit or deny and a reasonable inquiry was made, the Court finds the objections were well-founded given the phrasing of the request. (See Code Civ. Proc., § 2033.230.) For instance, RFA No. 2 seeks for Defendant to “[a]dmit that on December 18, 2022, YOU were negligent in the operation of the vehicle YOU drove with regard to the INCIDENT,” and RFA No. 5 seeks for Defendant to “[a]dmit that YOUR negligence with regard to the INCIDENT was a substantial factor in bringing about harm to Plaintiffs.” (Motion, Sep. Statement.) Negligence is a legal term of art with multiple components, and thus Defendant’s objections paired with admissions as to portions of the matter involved were permissible responses given the phrasing of the questions.

Thus, Camarena’s Motion is DENIED.

For all these reasons, the Motions are DENIED.

B. Sanctions

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).)

Here, the Motions were unsuccessful.

However, Defendant neither requests sanctions nor provides evidence outlining a reasonable sanctions award in the Oppositions. (See Opps.)

As such, the Court does not award sanctions at this time.

IV.

Conclusion

& Order

For the foregoing reasons, Plaintiffs

Ana Bertha Morales and Patricia Trujillo Camarena's Motions to Compel Further Responses to Requests for Admissions and requests for sanctions are DENIED.

Moving parties are ordered to give notice of ruling.